

(g) the conditions subject to which and charges payable for allowing weighment and circumstances for not allowing weighment of consignment in wagon-load or train-load under Sec. 79 ;

(h) the manner of giving open delivery under Sec. 81 ;

(i) the form of partial delivery certificate under sub-section (2) of Sec. 82 ;

(j) the manner of sale of consignment or part thereof under the proviso to sub-section (2) of Sec. 83 ;

(k) the manner in which a notice under sub-section (3) of Sec. 83 may be given ; (l) generally, for regulating the carriage of goods by the railways.

(3) Any rule made under this section may provide that a contravention thereof shall be punishable with fine which may extend to one hundred and fifty rupees.

(4) Every railway administration shall keep at each station a copy of the rules for the time being in force under this section, and shall allow any person to refer to it free of charge.

Comment

Section 87, sub-section (1) and (2) empower the Central Government to make rules for carrying out the purposes of Chapter IX. The matters in respect of which rules may be made by the Central Government are enumerated in detail in sub-section (2) sub-sections (3) and (4) empower the Central Government to provide for punishment for contravention of rules made under this clause and impose an obligation on railway administration to allow the inspection of such rules free of charge.

Rules - Power of framing .- The general power of framing rules for effectuating the purposes of the Act would plainly authorize and sanctify the framing of such a rule.

CHAPTER X

Special Provisions as to Goods Booked to Notified Stations

88. Definitions .- In this Chapter, unless the context otherwise requires,-

- (a) "essential commodity" means an essential commodity as defined in Cl. (a) of Sec. 2 of the Essential Commodities Act, 1955 (10 of 1955)

- (b) “notified station “ means a station declared to be a notified station under Sec. 89 ;
- (c) “State Government” in relation to a notified station, means the government of the State in which such station is situated, or where such station is situated in a Union territory, the administration of that Union territory appointed under Art. 239 of the Constitution.

Comment

Section 88 defines certain words and expressions used in Chapter X

89. Power to declare notified stations.- (1) The Central Government may , if it is satisfied that it is necessary that goods entrusted for carriage by train intended solely for the carriage of goods to any railway station should be removed without delay from such railway station, declare, by notification, such railway station to be a notified station for such period as may be specified in the notification :

Provided that before declaring any railway station to be a notified station under this Sub-Section, the Central Government shall have regarded to all or any of the following factors, namely :-

- (a) the volume of traffic and the storage space available at such railway station ;
- (b) the nature and quantities of goods generally booked to such railway station ;
- (c) the scope for causing scarcity of such goods by not removing them for long periods from such railway station and the hardship which such scarcity may cause to the community ;
- (d) the number of wagons likely to be held up at such railway station if goods are not removed there from quickly and the need for quick movement and availability of such wagons ;
- (e) Such other factors (being relevant from the point of view of the interest of the general public) as may be prescribed :

Provided further that the period specified in any notification issued under this subsection in respect of any railway station shall not exceed six months in the first instance, but such period may by notification, be extended from time to time by a period not exceeding six months on each occasion.